New Construction Purchase and Sale Agreement

THIS PURCHASE AND SALE AGREEMENT ("Agreement") is made and entered into as of this 15 Day of May 2026 between Atlanta Homes LLC ("Seller") and Sally Drake ("Buyer").

1. PROPERTY. Buyer agrees to buy and Seller agrees to sell the following land together with all improvements, fixtures and landscaping on such land and all appurtenances relating to such land (collectively, "the Property"): Street Address 4659 Laurel Street Atlanta, GA 30319, and and being more particularly described as the same as recorded in Deed Book 4375, Page 4 of Fulton county's records. The full legal description of the Property is as recorded with the Clerk of the Superior Court in such county and is incorporated by reference.

2. PURCHASE PRICE. The purchase price of the Property shall be: $1,000,000 Dollars, (U.S.) to be paid as set forth in this agreement. Buyer warrants that at closing, it will have sufficient cash together with any loan described herein to complete the purchase.

Buyer ☐ does or ☐ does not have real property to sell, lease or close on in order to complete the purchase. Buyer further agrees that the failure to sell, lease or close on such property will not be grounds for refund of earnest money in the event of loan denial.

3. CLOSING DATE. This transaction shall be closed on or before December 15, 2026. Buyer or Seller may not delay closing for any reason as long as home is complete and Seller has obtained a certificate of occupancy. If Buyer for any reason at no fault of Seller is unable to close on said date the buyer will pay seller $200 per day until closing (including but not limited to loan package not being ready if Buyer chooses to use lender other than the Seller's preferred lender.) If Buyer is unable to close within 7 days of scheduled closing date Seller shall have the option to terminate this agreement and retain all earnest and option money deposits.

4. METHOD OF PAYMENT. (Select A or B below; the other is not part of this Agreement.)

A. ☐ All Cash At Closing: At closing, Buyer shall pay purchase price to Seller in cash or its equivalent. Buyer's obligation to close shall not be contingent upon Buyer's ability to obtain financing. Buyer shall pay all usual and customary closing costs.

B. ☑ Where New Loan Is To Be Obtained:

(1) Loan Terms/Financing Contingency: This Agreement is conditioned upon Buyer's ability to obtain (as hereinafter defined) a loan with the principal amount being 80% of the purchase price (reduced to the next lowest hundred dollars), providing for payments in consecutive monthly installments of principal and interest over a term of not less than 30 years and secured by a first-priority deed to secure debt on the Property. "Ability to obtain" as used herein means that Buyer is qualified to receive the loan described herein based upon lender's customary and standard underwriting criteria. This agreement is not conditional upon Buyer's ability to obtain a particular interest rate.

(2) Closing Costs: Buyer shall pay all usual and customary closing costs for any loan, including the Georgia intangible tax, any usual and customary incidental costs, and the cost of any survey required by lender.

(3) Loan Application: must be completed within 5 calendar days from the date this Agreement becomes binding. Buyer understands that seller may not contribute any closing cost to lender not on Seller's approved lender list: American Mortgage, Easy Mortgage or Sun Georgia Mortgage. If buyer chooses to use outside lender, Buyer agrees to pursue any such loan diligently and in good faith, to execute all papers, to provide all documents, to perform all other actions necessary to obtain the loan and to accept such loan if approved by a lender. Should Buyer not apply for the loan with Seller's approved lender and fail to provide the notice required herein within five (5) calendar days after the Binding Agreement Date, Seller may void this Agreement upon written notification to Buyer and retain all earnest money and option money.

Buyer shall provide written notice to Seller or Listing Broker within five (5) calendar days after the Binding Agreement Date if Buyer elects not to apply with Seller's approved lender and intends to obtain financing through another lender.

(4) Financing Contingency Waiver: If Seller has not received written notice from Buyer within 14 calendar days from the date the Agreement becomes binding that Buyer is unable to qualify for the loan, the financing contingency shall be deemed waived by Buyer.

(5) Loan Options:

(a) Buyer acknowledges the possibility that many different loan programs, available from many different lenders, may fit the description of the loan set forth herein. No attempt has been made to precisely describe all terms and conditions of the loan. The economics of this transaction, as bargained for by the parties, are such that Buyer agrees that a loan with terms consistent with those described herein shall be acceptable to Buyer and shall satisfy this loan contingency.

(b) Buyer, at its option and without voiding this Agreement, may also apply for a loan with different terms and conditions and close the transaction provided:

I. all other terms and conditions of this Agreement are fulfilled; and

II. the new loan does not increase the costs charged to Seller. Notwithstanding the foregoing option, Buyer shall be obligated to close this transaction if Buyer has the ability to obtain a loan with terms as described herein.

(6) Loan Responsibility: Buyer acknowledges and represents that it has not relied upon the advice or representations of Seller or Brokers regarding the type of loan or the terms of any loan to be obtained by Buyer. Buyer agrees to hold Seller and Brokers harmless from any claim or loss arising out of Buyer's application and commitment for any loan or the terms of the instruments evidencing or securing the loan.

(7) Loan Discount: Buyer shall pay any loan discount payable in connection with the loan.

(8) Loan Proceeds: Proceeds of the loan, together with any balance of the purchase price, shall be paid in cash or certified funds by Buyer to Seller at closing.

(9) Interest Rate Fluctuation: Buyer and Seller acknowledge and agree that interest rates on mortgage loans may fluctuate between the dates the Agreement becomes binding and closing.

(10) Private Mortgage Insurance Premium: Any private mortgage insurance premium for the loan shall be paid by Buyer.

(11) Escrow Deposits: In addition to the payment of principal and interest upon the loan, Buyer shall pay at closing the amount necessary to establish an escrow account as required by lender and shall also pay, along with each monthly payment of principal and interest, amounts required by lender for escrows, including but not limited to annual ad valorem taxes and hazard insurance premiums for the Property.

5. EARNEST MONEY

(1) Buyer has paid $ 5000 as earnest money to ☐ Seller or ☑ Seller's Broker or ☐ Buyer's Broker (herein after referred to as Holder) in the form of ☐ wire or ☑ check.

(2) Within three (3) banking days, the earnest money shall be deposited in ☑ an escrow/trust account or in ☐ a general account and, in the case of an escrow/trust account, shall thereafter be held in such account.

(3) If any check given as earnest money is not honored, Seller may terminate this Agreement by notice to Buyer and Brokers.

(4) If the earnest money is to be deposited in Seller's general account, such funds shall not be segregated and Seller may use such funds for whatever purpose Seller deems fit. Seller and Buyer agree that Brokers have no responsibility for earnest money deposited with Seller.

(5) The earnest money shall be applied to the purchase price at closing.

(6) If the sale is not closed because of Seller's inability, failure or refusal to perform the Agreement, the earnest money shall be refunded to Buyer.

(7) If Buyer fails or refuses to close for any reason other than provided in section 4.B, Seller shall be entitled to the earnest money as liquidated damages for damages other than those damages covered by any Non-Refundable Construction Deposit, if any such deposit. The parties agree that it would be extremely difficult to ascertain such actual damages to Seller in such event, that the earnest money is a reasonable estimate of such actual damages to Seller and that the retention of the earnest money by Seller under such circumstances is not intended as a penalty but rather as full liquidated damages to Seller other than for damages covered by any Non-Refundable Construction Deposit, if any such deposit. As an alternative to retaining the earnest money as damages, Seller may seek specific performance of the Agreement. If specific performance is granted, the earnest money shall be applied to the purchase price at closing.

(8) If the earnest money is held by the Broker, then it will only be disbursed as follows:

(a) upon the failure of the parties to enter into a binding agreement;
(b) at closing;
(c) upon written agreement of all parties;
(d) upon an award of an arbitrator (if the parties have agreed to binding arbitration) or order of court;

(e) If Broker has received notice from any party that the agreement has been terminated, or Closing has failed to occur, Broker shall make a reasonable interpretation of the agreement. If the Broker makes a reasonable interpretation that the Agreement has been terminated due to Buyer's default, the Broker shall disperse the earnest money to the Seller. If the Broker makes a reasonable interpretation of the Agreement that the Agreement has been terminated due to Seller's default, the Broker shall disburse the earnest money to the Buyer.

In any event, the Broker will first send notification to all parties of the Holder's disbursement decision (hereinafter referred to as Earnest Money Notice). Upon receipt of Broker's Earnest Money Notice, either the buyer or seller shall have twelve (12) days to object to the disbursement in writing. After receipt of an objection, Broker may change its decision or proceed according to Earnest Money Notice. If the decision is changed from the initial Earnest Money Notice, Broker shall first send another Earnest Money Notice and wait twelve (12) days for objections before disbursing the earnest money. If the Broker receives an objection, they may, at Broker's complete discretion, disperse the earnest money as stated in the second Earnest Money Notice or reverse the decision to disperse it as stated in the first Earnest Money Notice. If no objection to the disbursement of the Earnest Money is received by Broker prior to the disbursement of the Earnest Money, the right to object to said disbursement shall be deemed waived by the parties.

Additionally, if it is not possible to make a reasonable interpretation of the agreement, Broker may deduct any attorney's fees, court costs, and other related expenses from the Earnest Money as necessary to reimburse Broker for costs related to the interpleader action, and Broker shall be entitled to recover additional costs as described above if Broker's expenses exceed the amount of the Earnest Money. The party that the court deems to be entitled to the Earnest Money may seek to recover its attorney's fees, court costs, and the amount deducted by the Broker from the party that was not deemed to be entitled to the Earnest Money. In performing any of its duties under this Agreement, Broker shall not be liable for any loss, cost, or damage which may be incurred as a result of serving as Broker hereunder, except for any loss, cost, or damages arising out of its willful default or gross negligence. The parties agree to release Broker from liability for any costs, fees, or damages resulting from Broker's duties described in the agreement as the earnest money holder.

6. TITLE EXAMINATION. If Seller fails to provide marketable title, then, at the option of Buyer, evidenced by written notice to Seller, the Agreement shall be null and void and the earnest money shall be returned to Buyer.

7. HOME WARRANTY DISCLOSURE. Check one of the following; the others are not part of this Agreement.)

☐ BUILDER LIMITED WARRANTY WITH HOMEOWNER HANDBOOK is offered with the Property. Seller agrees to deliver to Buyer at closing or with this Agreement a limited warranty, which is not insured by a third party authorized to insure warranties under a state or federal insurance or risk retention act or statute, together with the current version of the Homeowner Handbook published

by the Greater Atlanta Home Builders Association, Inc. The Homeowner Handbook is not a warranty by the Greater Atlanta Home Builders Association, Inc. Buyer acknowledges that a copy of the limited warranty and Homeowner Handbook has been provided to Buyer or is available upon request from Seller.

☑ NO WARRANTY

8. INSPECTIONS.

A. Standards. The only criteria and standards that will be used in connection with inspections permitted by this Agreement and in compiling the New Home Orientation Walk Through List are those set forth in writing in:

(1) applicable governmental codes, regulations or ordinances;
(2) enforceable public or private restrictions or covenants or subdivision or homeowners' association rules or regulations;
(3) any warranty provided for in paragraph 7 of this Agreement

B. Buyer Inspection. Buyer, at Buyer's expense, at reasonable times during normal business hours, and without interfering with any work on the Property, shall have the right and responsibility to enter upon the Property for the purpose of inspecting, examining, testing and surveying the Property and any other condition or circumstance on or in the vicinity of the Property that might affect the Property. Buyer agrees to assume all responsibility for its own acts and those of its representative(s) in exercising its rights under paragraph 8 and agrees to indemnify and hold Seller and Brokers harmless as to any damages or injuries (including reasonable attorney's fees and litigation and arbitration costs and fees) resulting therefrom to the fullest extent permitted by Georgia law. Seller may be present during any inspection. If Buyer becomes aware of a problem or defect during any such inspection, Buyer shall promptly provide written notification to Seller of such problem or defect.

C. New Home Orientation Walk Through Inspection. Whether or not Buyer has earlier inspected the Property, prior to closing, Buyer and Seller's representative shall inspect the Property and prepare and sign a New Home Orientation Walk Through List specifying all items, including any noted in previous inspections, that fail to comply with the Construction Standards. The inclusion of an item on the executed New Home Orientation Walk Through List that does not fail to meet the Construction Standards shall not obligate Seller to address that item. Buyer acknowledges that Seller will make its best efforts to address all of the items specified in the New Home Orientation Walk Through List that fail to comply with the Construction Standards on a timely basis as soon as reasonably possible after closing. However, the fact that any such items remain to be addressed as of closing shall not constitute a valid reason for Buyer's failure or refusal to close, as long as a certificate of occupancy or final inspection certificate has been issued, and none of the proceeds due to Seller at closing shall be withheld from Seller or placed in escrow without the Seller's written consent because such items have not been addressed prior to closing. In lieu of repairing any item specified on the New Home Orientation Walk Through List, or in previous written notification, Seller shall have the option of replacing such item or paying reasonable sums to Buyer with which to have such repair or replacement made by Buyer or a third party.

D. Private Inspectors. If Buyer chooses to use a private home inspector in connection with any of the inspections permitted herein, that inspector must at the time of the inspection:

(1) maintain all business and other licenses required by law;
(2) be a full-time professional inspector or registered professional engineer;

(3) if not a professional engineer, be a member of either the American Society of Home Inspectors or the Georgia Association of Home Inspectors;
(4) have general liability insurance in an amount of a least $500,000;
(5) Have workers compensation coverage, if required by laws; and
(6) be a certified CABO One and Two Family Dwelling inspector (or its equivalent) under the state adopted one and two family dwelling building code.

At the time of the inspection, Buyer shall provide to seller proof that the inspector meets all these requirements. Buyer shall make arrangements with Seller, at least one week in advance, for the home inspector to conduct any such inspection. If the home inspector concludes that there are any violations of applicable codes in effect as of the date of the issuance of the building permit, then for each alleged violation, Buyer is required to have the inspector specify in written form the applicable code and sections and subsections of the code that the inspector contends have been violated. In conducting any inspection permitted by the Agreement, the private inspector shall evaluate the Property solely in accordance with the Construction Standards and not in accordance with other standards. It shall be the sole responsibility of the Buyer to pay for such inspections.

E. Final inspection must be completed a minimum of seven (7) days before closing.

F. Should purchaser, his agents, representatives or invitees enter onto the property prior to closing, Purchaser hereby agrees to indemnify, defend, and hold seller harmless from and against any and all claims, demands or causes of action arising in favor of purchaser (and purchaser heirs), his/her agents or any third party invitee of the purchaser, on account of bodily injury, death or damage to or loss of property arising out of or incident to the condition of the property and/or the home. This indemnity is given to seller regardless of whether the seller, it's agents or employees are negligent in whole or in part, and even when the injury, death and/or damage is caused by the sole negligence of seller, it's agents or employees.

9. MANDATORY BINDING ARBITRATION.
Seller and Buyer will cooperate with one another in avoiding and informally resolving disputes between them. They acknowledge the availability of mediation as a method of assisting in the resolution of disputes. Seller and Buyer further acknowledge that in the event of disputes which are not informally resolved, resolution of those disputes will best be achieved through arbitration rather than civil litigation because of the substantial savings of time and expense for all parties and because of the privacy and flexibility associated with arbitration procedures. If Seller provides a warranty to Buyer, then the terms and procedures of that warranty shall first apply to any claim or dispute, which is within the coverage of that warranty, involving Seller, Buyer or the insurer, if any, of the warranty. Any unresolved claim or dispute between Seller and Buyer arising out of or relating to such warranty, if any, and any other claim or dispute of any kind or nature between Seller and Buyer arising out of or relating in any manner to this Agreement or this transaction shall be decided by binding arbitration in accordance with the Federal Arbitration Act and with the rules and procedures of the arbitrator and such decision shall be final. If Seller and Buyer do not voluntarily agree on another arbitrator, Construction Arbitration Associates, Ltd. shall be the arbitrator. The provisions of this paragraph shall survive closing and delivery of the warranty deed to Buyer and shall apply to any claim for rescission of the Agreement. Any questions regarding the interpretation of this arbitration provision or about the arbitrability of a dispute under this provision shall be decided by the arbitrator, unless specifically required by law to be decided by a court, and shall be binding on the

parties. The parties acknowledge and agree that their execution of this Agreement constitutes acceptance of the provisions of this paragraph.

Both parties should be aware that arbitration can involve the payment of substantial fees by each party for the services of the arbitrator. Before agreeing to arbitrate, each party should consider consulting legal counsel about arbitration, its costs, and alternatives to arbitration, the arbitrator, and other potential arbitrators.

In the event that any dispute shall arise between seller and purchaser prior to closing concerning construction of the home or any other matter relating to the interpretation or implementation of this contract (except purchaser's breach of the contract), then seller shall have the right, upon written notice to the purchaser, to terminate this contract. In the event of termination of this contract by seller pursuant to this paragraph seller shall return all Earnest money to purchaser (plus any prepayments for extras, upgrades and options) and in addition pay to purchaser the sum of $500.00, and amount which the parties agree, in accordance with Official code of Georgia annotated, Section 13-6-7, to be a reasonable and foreseeable estimate of the actual damages incurred by the purchaser incident to the cancellation of this contract, if any and not a penalty (it being difficult if not impossible to ascertain those damages). Upon such termination of this contract by seller and payment of the stipulated sum, no cause of action against seller shall accrue to the purchaser, and seller shall have no further obligation to construct and sell the home and purchaser shall not be obligated or entitled to acquire the home. As noted above, this paragraph shall not apply to instances where the purchaser is in breach of this contract.

10. DISPOSAL SYSTEMS AND WATER SOURCE.
Seller warrants that the main dwelling on the Property is served by:
A. Disposal System: ☐ Public Sewer, ☐ Septic Tank or ☐ Other Disposal System
B. Water Source: ☐ Public Water or Well
C. Any lender-imposed inspection(s) of the disposal system or water source shall be obtained and paid for by Buyer.

11. WARRANTY OF TITLE.
A. Seller warrants that it presently has title to the Property. At closing, Seller agrees to convey good and marketable title to the Property by Limited warranty deed subject only to:

(1) zoning ordinances affecting the Property;
(2) general utility, sewer and drainage easements of record upon which buildings do not encroach;
(3) subdivision covenants, easements and restrictions of record; and
(4) leases and other easements, restrictions and encumbrances specified in this Agreement.
Marketable title as used herein shall be determined in accordance with Georgia law as supplemented by the Title Standards of the State Bar of Georgia and shall be insurable at regular rates, subject only to standard exceptions unless otherwise specified herein by a title insurance company licensed to do business in the State of Georgia. It is agreed that any defect in the title which comes within the scope of any of such Title Standards shall not constitute a valid objection on the part of Buyer provided Seller furnishes the affidavits or other title papers, if any, required in such standard to cure such defect.

B. Seller shall provide Buyer with an affidavit at closing stating that all bills for labor and materials have been paid in full or will be paid from the closing proceeds.

12. DISCLAIMER AND DISCLOSURE.

A. Seller and Buyer acknowledge that they have not relied upon the advice or representations, if any, of Brokers relative to: the legal and tax consequences of this Agreement; the terms and conditions of financing; the purchase and ownership of the Property; the structural condition of the improvements on the Property; the operating condition of the electrical, heating, air conditioning, plumbing, water heating systems, pool, spa and appliances in the Property; the availability of utilities to the Property; the investment potential or resale value of the Property; the availability and ownership of any amenity package; or, restrictive covenants and architectural controls. Seller and Buyer acknowledge that if such matters have been of concern to them, they have sought and obtained independent advice relative to such matters. Buyer acknowledges that closing shall constitute acceptance of the Property.

B. All parties to this Agreement acknowledge that various substances used in the construction of the improvements on the Property or otherwise located on the Property may now or in the future be determined to be toxic or hazardous and may need to be specially treated, handled and/or removed from the Property. Persons who have an interest in the Property may be required by law to undertake the cleanup of such substances. Buyer acknowledges:

(1) that Seller and Brokers have no expertise with respect to toxic wastes or hazardous substances;
(2) that such substances can be extremely costly to correct and remove;
(3) that Seller and Brokers have made no investigations or representations with respect to such substances;
(4) that Seller and Brokers shall have no liability to Buyer regarding the presence of such substances on the Property; and
(5) Buyer releases Seller and Brokers from any claim, rights of action or suits relating to the presence of such substances on the Property to the fullest extent permitted by law.

13. OTHER PROVISIONS.

A. Utility Services. Seller shall cause all utility services to be operational. Buyer shall pay all costs and deposits required by utility service companies to have services turned on in Buyer's name.

B. Property Condition. The Property shall be in broom-clean condition as of closing.

C. Possession. Possession should be provided to Buyer at time of closing. Buyer shall not move persons or items into the Property prior to closing.

D. Real Estate Taxes. Real estate taxes on the Property for the calendar year in which the sale is closed shall be prorated between the parties as of the date of closing.

E. Prorations. Seller and Buyer agree to prorate between themselves as of the date of closing any association fees and all utility bills rendered subsequent to closing which include service for any period of time the Property was owned/occupied by Seller and any other items customarily prorated in connection with the purchase and sale of property similar to the Property.

F. IRS Compliance. Buyer and Seller agree to comply with and to execute and deliver such certifications, affidavits and statements as are required at the closing in order to meet the requirements of the Internal Revenue Code.

G. Wood Infestation Report and Soil Treatment Certification. At closing, Seller shall provide Buyer with a repair and retreat soil treatment certification/bond,. If any additional inspections or reports are requested by Buyer, any costs for any inspections or reports shall be paid by Buyer.

H. Insulation. Insulation has been installed (or will be installed prior to closing) in accordance with the terms of this paragraph.

(1) Exterior walls are insulated with batt insulation to a thickness of 3 1/2 inches which will, according to the manufacturer, yield an R-value of 13 ;
(2) Ceilings below attic areas are insulated with blown insulation to a thickness of 14 inches which will, according to the manufacturer, yield an R-value of 38 ;
(3) Vaulted ceilings are insulated with batt insulation to a thickness of 9 1/2 inches which will, according to the manufacturer, yield an R-value of 38 ;

(4) Floor overhangs are insulated with batt insulation to a thickness of 5 1/2 inches which will, according to the manufacturer, yield an R-value of 19

I. Survival of Agreement. Except as otherwise specified in this Agreement, any condition or stipulation not fulfilled at time of closing shall survive the closing, execution and delivery of the warranty deed until such time as such condition or stipulation is fulfilled.

J. Severability. Each provision of the Agreement is severable from every other provision of the Agreement. If any provision is determined to be unenforceable, the rest of the Agreement shall remain valid and enforceable. If any provision of the Agreement is determined unenforceable in a particular context or as to a particular right, the Agreement shall remain enforceable in all other contexts and as to all other rights.

K. Instructions to Closing Attorney. Closing Attorney is instructed to:
(1) transfer Survival of Agreement subparagraph to the closing statement (although a failure to do so shall not prevent the survival of such subparagraph);
(2) obtain and distribute to and from the appropriate parties such certifications, affidavits and statements required in order to meet the requirements of Internal Revenue Code Section 1445 (Foreign/Non-Foreign Sellers) or in the alternative to disburse and hold the sales proceeds in such a manner as may be required to comply with Internal Revenue Code Section 1445;
(3) file with the Internal Revenue Service the IRS Form 1099B documenting this transaction and comply with any other reporting requirements related thereto; and
(4) comply with any other federal or state withholding requirements.

L. Flood Insurance. If flood insurance is desired by Buyer, or required by Buyer's lender, Buyer shall pay for such insurance.

M. Covenants, Easements and Restrictions. If the Property is subject to association, neighborhood or subdivision covenants, restrictions and easements, Buyer acknowledges that it has had an opportunity to review the documents creating same before executing this Agreement and that it is bound by the provisions of such documents, including but not limited to any that set forth design or construction criteria or create or allow for the creation of committees or organizations to establish such criteria.

N. Association Fees. (Select 1, 2 or 3 below; the others are not part of this Agreement.)

(1) ☐ Buyer acknowledges that there is a mandatory association fee in the approximate amount of $_____ per year. $_____ association initiation fee and $_____ closing letter fee due at closing. These costs are determined by the association and subject to change.

(2) ☐ Buyer acknowledges that there is not a required association fee.

(3) ☑ Buyer acknowledges that there is no association.

O. Should the home be partially or wholly destroyed by fire, windstorm, or other casualty before Closing, Seller shall have the option to cancel this Contract and return the Earnest Money and any prepayments to Purchaser. Seller's decision to rebuild the Home or cancel the Contract shall be communicated to Purchaser in writing within twenty (20) days of the loss. Purchaser acknowledges that it shall have no claim to or interest in any insurance proceeds attributable to the loss.

P. Notices. Except as otherwise provided for in this Agreement, all notices or demands required or permitted hereunder shall be in writing to the address herein provided and delivered either:

(1) in person

(2) Email

(3) by facsimile (Fax) transmission; or

(4) by overnight delivery service prepaid;

(5) by the United States Postal Service, postage prepaid, registered or certified, return receipt requested. Such notices shall be deemed to have been given as of the date and time the same are actually received by the party to whom the notice was directed. Prior to closing, Buyer's address for purposes of this sub-paragraph shall be as indicated on the signature page. After closing, it shall be the Property address. Refusal to accept or inability to deliver because of changed address of which no notice was given shall be deemed receipt of such notice. Any party, by written notice to the others in the manner herein provided, may designate an address different from that stated below.

Q. Modifications. This Agreement may not be modified, altered or amended except by written instrument executed by the parties hereto.

R. Transfer or Assignment. This Agreement shall not be transferred or assigned without the written consent of all parties. Any assignee shall fulfill all the terms and conditions of this Agreement.

S. Governing Law. This Agreement and all of its provisions, exhibits and attachments shall be governed by and construed, interpreted and enforced in accordance with the laws of the State of Georgia.

T. Terminology and Captions. All pronouns, singular or plural, masculine, feminine or neuter, shall mean and include the person, entity, firm or corporation to which they relate as the context may require. Wherever the context may require, the singular shall mean and include the plural and the plural shall mean and include the singular.

U. Time is of the Essence. Time is of the essence of this Agreement.

V. Successors and Assigns. This Agreement shall inure to the benefit of, and be binding upon, the parties hereto, their heirs, successors, administrators, executors and assigns.

W. Responsibility to Cooperate. All parties agree that such documentation, as is reasonably necessary to carry out the obligations of this Agreement, shall be produced, executed and/or delivered by such parties at the time required to fulfill the terms and conditions of this Agreement.

This responsibility shall not include execution by Seller of documents, which impose additional obligations on the Seller.

X. Seller shall transfer to Buyer, at closing, Seller's interest in all manufacturer's warranties and service contracts which by their terms are transferable to Buyer.

Y. Entire Agreement. This Agreement constitutes the sole and entire agreement between the parties. No representation, promise or inducement not included in this Agreement is relied upon or shall be binding upon any party. The term "Agreement" as used herein, as well as the terms "herein", "hereof", "hereunder", and the like mean this Agreement in its entirety. All exhibits, amendments and addenda attached hereto are part of this Agreement.

14. STATUTORY ALTERNATIVE DISPUTE RESOLUTION:
A. "Act:" For purposes of this paragraph, the term "Act" shall refer to O.C.G.A. §§ 8-2-35 through 8-2-43.

B. Notice: GEORGIA LAW CONTAINS IMPORTANT REQUIREMENTS YOU MUST FOLLOW BEFORE YOU MAY FILE A LAWSUIT OR OTHER ACTION FOR DEFECTIVE CONSTRUCTION AGAINST THE CONTRACTOR WHO CONSTRUCTED, IMPROVED, OR REPAIRED YOUR HOME. NINETY DAYS BEFORE YOU FILE YOUR LAWSUIT OR OTHER ACTION, YOU MUST SERVE ON THE CONTRACTOR A WRITTEN NOTICE OF ANY CONSTRUCTION CONDITIONS YOU ALLEGE ARE DEFECTIVE. UNDER THE LAW, A CONTRACTOR HAS THE OPPORTUNITY TO MAKE AN OFFER TO REPAIR OR PAY FOR THE DEFECTS OR BOTH. YOU ARE NOT OBLIGATED TO ACCEPT ANY OFFER MADE BY A CONTRACTOR. THERE ARE STRICT DEADLINES AND PROCEDURES UNDER STATE LAW, AND FAILURE TO FOLLOW THEM MAY AFFECT YOUR ABILITY TO FILE A LAWSUIT OR OTHER ACTION.

C. "Construction Defect:" For purpose of the Act, the term "construction defect" shall mean: any matter concerning the design, construction, or repair of a dwelling, as that term is defined in O.C.G.A. § 8-2-36 (6), or an alteration of or repair or addition to an existing dwelling, or of an appurtenance to a dwelling on which a person has a complaint against Seller or other "contractor," as that term is defined in O.C.G.A. § 8-2-36 (5); and any physical damage to the dwelling or real property on which it is located that is caused by a construction defect. This definition does not change or expand: the definition of "Construction Standards" in this Agreement; or Seller's obligations relating to design, construction, repair or replacement under this Agreement, any limited warranty, the law or otherwise. The term "construction defect" is incorporated into this Agreement to make it clear that any "action," as that term is defined in O.C.G.A. § 8-2-36 (1), whether based on breach of contract, breach of warranty, negligence, fraud or other statutory or common-law grounds, that alleges a "construction defect" is subject to the Act.

D. Interaction of Act and Agreement: Buyer acknowledges and agrees that his obligations under this Agreement are in addition to those under the Act.

E. Except as permitted by O.C.G.A. § 8-2-38 (o), if Buyer files an "action," as that term is defined in

O.C.G.A. § 8-2-36 (1), without first complying with the requirements of the Act, Buyer shall be liable for the reasonable attorney's fees and expenses incurred by Seller in obtaining a stay of that action

15. AGENCY AND BROKERAGE.

A. Agency:

(1) In this Agreement, the term "Broker" shall mean a licensed Georgia real estate broker or brokerage firm and where the context would indicate the broker's affiliated licensees. No Broker in this transaction owes any duty to Buyer or Seller greater than set forth in the brokerage engagement or the Brokerage Relationships in Real Estate Transaction Act, O.C.G.A.§10-6A-1 et seq.

(2) If either Seller or Buyer is unrepresented by a Broker, such party acknowledges that it is solely responsible for protecting its interests and that Broker's role is limited to performing ministerial acts for it.

(3) Any Broker working with Seller is identified on the signature page as the "Listing Broker." That Broker is ☑ or ☐ is not representing Seller.

(4) Any Broker working with Buyer is identified on the signature page as the "Buyer Broker." That Broker is ☑ or ☐ is not representing Buyer.

(5) If Seller and Buyer are both represented by the same Broker, a relationship of either dual agency ☐ or ☑ designated agency shall exist.

B. Dual Agency Disclosure. (applicable only if dual agency has been selected above.) Seller and Buyer consent to Broker acting as a dual agent in this transaction.

(1) Seller and Buyer have been advised by Broker that:

(a) in serving as a dual agent, Broker is representing two clients whose interests are or at times could be different or even adverse;

(b) Broker will disclose all adverse, material facts relevant to the transaction except for information made confidential by request or instructions from another client, which is not otherwise required by law to be disclosed;

(c) Neither Buyer nor Seller must consent to dual agency; and

(d) The consent of Buyer and Seller to dual agency has been given voluntarily, and each has read and understands its brokerage engagement agreement

(2) Material Relationship Disclosure. Broker and/or affiliated licensees have no material relationship with either client except as follows: (A material relationship means one actually known of a personal, familial or business nature between Broker and/or affiliated licensees and a client which would impair either's ability to exercise fair and independent judgment relative to another client.)

(3) Notwithstanding any provision to the contrary contained herein, Seller and Buyer each

direct Broker, while acting as a dual agent, to keep confidential and not reveal to the other party any information which could adversely affect its negotiating position.

(4) Designated Agency Assignment. (Applicable only if the designated agency has been selected above.) Broker has been assigned to work exclusively with Seller as Seller's designated agent and to work exclusively with Buyer as Buyer's designated agent. Each designated agent shall represent exclusively the party to whom it has been assigned as a client and shall not represent in this transaction the client assigned to the other designated agent.

16. SPECIAL STIPULATIONS. The below stipulations page, if conflicting with any preceding paragraph, shall control and are made apart hereof:

NA

17. EXHIBITS AND ADDENDA. The following Exhibits and/or Addenda are attached hereto and by reference made a part hereof:

- ☐ Floor Plan and Elevation Exhibit " _____ "
- ☐ Community Standard Features Exhibit " _____"
- ☐ Design Center Amendment Exhibit "_____"
- ☑ Other Exhibit "A_____"
- ☐ Other Exhibit "_____"

TIME LIMIT OF OFFER. This instrument shall be regarded as an offer by Buyer or Seller, whoever first signs, to the other and is open for acceptance by the other until 11_____o'clock AM, on the May__day of 16_____, 2026.

ACCEPTANCE. The offer is hereby accepted on May 16, 2026_____. This instrument shall become a binding Agreement when written acceptance is actually received by the offeror or Broker for the offer or, if any. Upon receipt of acceptance, the other party and Brokers shall be notified immediately.

New Construction Purchase and Sale Agreement Signature Page

Sally Drake May 15, 2026

Buyer's Signature Date

Sally Drake

Print or Type Name

770-555-8268

Cell Phone

sdrake@helloemail.com

Email

May 15, 2026

Buyer's Signature Date

Print or Type Name

Cell Phone

Email

Pumpkin Key Realty

Buyer Brokerage Firm

Rachel David May 15, 2026

Broker/ Affiliated Licensee's Signature Date

Rachael David

Print or Type Name

484286

GA Real Estate License #

770-555-9280

Cell Phone

rdavid@email.me.com

Email

485281

Brokerage Firm License Number

David Johnson May 15, 2026

Seller's Signature Date

Print or Type Name: Atlanta Homes LLC

By: David Johnson

Title: General Manager

Business Phone: 770-555-5461

Email: David@atlantabuilder.com

Christine James May 15, 2026

Broker/Affiliated Licensee's Signature Date

Print or Type Name: Christine James

GA Real Estate License # 485461

Email: christinejames@my.email.com

Cell Phone: 770-555-4624

Brokerage Firm License Number: 464571

Seller Brokerage Firm: Door Realty

Bindng Agreement Date is May 16, 2026.